

Bihar Registration of Vaidyas, Hakims, Surgeons and Midwives (Maintenance of Register) Rules, 1953

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[BIHAR-REGISTRATION-OF-VAIDYAS-HAKIMS-SURGEONS-AND-MIDWIVES-MAINTENANCE-OF-REGISTER-RULE
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[Bihar Registration of Vaidyas, Hakims, Surgeons and Midwives \(Maintenance of Register\) Rules, 1953](#)

1.

Short title and commencement.

- 1. These Rules may be called the Bihar Registration of Vaidyas, Hakims, Surgeons and Midwives (Maintenance of Register) Rules, 1953.

2.

They shall come into force at once.

2. Definitions.

- In these Rules unless there is any thing repugnant in the subject or context,-

(a)

'the Act' means the Bihar Development of Ayurvedic and Unani System of Medicine Act, 1951;

(b)

'Form' means a form appended to these rules; and

(c)

'section' means a section of the Bihar Development of Ayurvedic and Unani Systems of Medicine Act, 1951.

3.

There will be four registers : one for Vaidyas, one for Hakims, one for Surgeons and one for Midwives practising the Ayurvedic and Unani Systems of Medicine.

The registers shall be in the following form :-

Sl. no.

Name.

Father's (or in the case of a married woman, husband's) name.

Qualification.

Date of Registration.

Address or Appointment.

Remarks.

1

2

3

4

5

6

7

Signature of the Registrar.

4.

The names of all persons registered under the Act will be entered in the register together with all relevant particulars required under the preceding Rules.

All applications for registration shall be made in Form A (the form set out in Appendix A) obtained from the office of the Registrar on payment of a fee of ten rupees and a stamp duty of eight annas in adhesive stamps to be affixed to the registration certificate leviable under Article 24 of Schedule 1 to the Indian Stamp Act, 1894.

In the event of the Registration being refused, the registration fee of ten rupees shall after deducting the money order commission be refunded to the applicant.

5.

Each page of the Registers shall be verified and signed by the Registrar.

6.

The memorandum of an appeal by a person aggrieved by the decision of the Registrar regarding registration of any person or the making of any entry in the Register shall state the grounds on which the registration or entry is challenged and shall be presented to the President of the Council personally or sent to him under a registered post. On receipt of such memorandum, the President shall fix a date for the hearing of the appeal and cause copies of the memorandum to be distributed to all the members of the Council. A notice of the date so fixed shall be served on the appellant asking him to appear before the Council either personally or through his duly authorised agent or lawyer with evidence, if any, in support of the appeal. The Council shall on the date fixed, or any other date to which the hearing may be adjourned, hear the appellant or his agent and the Registrar and decide the appeal.

7.

Every person, whose name has been entered in the Register shall be entitled to receive from the Registrar a certificate of registration. Such certificate shall set forth the full name of the person registered, his designation, his address, the date and place of registration and the qualifications, in respect of which he has been registered. Such certificates shall

be in Form B (the form set out in Appendix B).

8.

On application for a duplicate certificate, a certificate in Form 'C' may be issued.

9.

The Council shall re-enter in the Register if it deems fit, the name of any person which may have been removed therefrom under Section 27 of the Act, but no application for the restoration to the Register of the name of a person which has been removed under Section 27 shall be entertained, unless it is accompanied by a declaration made by the applicant setting forth the facts of the case, and stating that he is the person originally registered, and unless it is accompanied also by a certificate as to his identity from two practitioners registered under the Act or, in his case of an applicant residing abroad, a certificate as to his identity signed by two persons, who shall be Magistrates or officers of a Gazetted rank serving in the Civil or Defence services of Government or two resident practitioners registered under the Act. A fee of five rupees shall be levied for the registration of a practitioner whose name has been removed from the Register under Section 27.

Form A

(See Rule 4)

Council of Ayurvedic and Unani Medicines, Bihar

Application For Registration

To,

The Registrar,

Council of Ayurvedic and Unani Medicines, Bihar.

I beg to submit that I want to get my name registered in the list of registered practitioners under the Bihar Development of Ayurvedic and Unani Systems of Medicine Act, 1951. I submit the following facts for the information of the Council in this connection:-

(1)

Name in full.

(2)

Father's name (or in the case of a married woman husband's name).

(3)

Date of birth (in words and figures).

(4)

Birth place (with address).

(5)

Permanent address.

(6)

Present address.

(7)

Whether had any instructions in other studies besides Ayurvedic or Unani system (mention where, when and how, if any).

(8)

(a)

Place, period and method by which instructions in Ayurvedic or Unani courses of studies were taken.

(b)

The name of institution or teacher (with address).

(c)

Particulars of examinations passed and when.

(d)

Medium of instructions and books studied.

(e)

Apprenticeship, if any, under any practitioner.

(9)

Duration and place of practice.

(10)

Whether practising according to any system besides Ayurvedic or Unani system, mention, if any.

(11)

Other particulars.

I want to be registered under section.....

I solemnly declare that the above information is correct to my knowledge.

Applicant

(Signature in full.)

Instructions-

1. The applicant must fill in the form in his own handwriting.
2. A money order of Rs. 10 and also an adhesive stamp of annas eight must be sent along with the application Form towards the payment of registration fee.

Form B

(See Rule 7)

Council of Ayurvedic and Unani Medicines, Bihar

Certificate No.

I hereby certify that Shrihas been registered under the Bihar Development of Ayurvedic and Unani Systems of Medicine Act, 1951 ason at Patna.

Address.....Registrar.

Important Notice

Every registered practitioner should be careful to send to the Registrar immediate notice of any change in his address, and also to answer all inquiries that may be sent to him by the Registrar in regard thereto, in order that his correct address may be duly inserted in Register, otherwise under Section 27 of the Bihar Development of Ayurvedic and Unnai Systems of Medicine Act, 1951, such practitioner is liable to have his name removed from the Register.

Form C

(See Rule 8)

Council of Ayurvedic and Unani Medicines, Bihar

Certificate No.

Shri.....has been registered under the Bihar Development of Ayurvedic and Unani Systems of Medicine Act, 1951 as.....on at Patna.

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